

# Veena Manju Bhargavi vs Veena Vishnu Bhagavan on 8 September, 2025

APHC010215782025

IN THE HIGH COURT OF ANDHRA PRADESH  
AT AMARAVATI

MONDAY, THE EIGHTH DAY OF SEPTEMBER  
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 142 OF 2025

Between:

Veena Manju Bhargavi, wife of Vishnu Bhagavan, D/o. Kandukuri Hari Prasad, aged 35 years, Occ. House Resident of Door No. 40-211, bangarupeta, Kurnool, Kurnool District, Andhra Pradesh.

...Petitioner/Respondent

AND

Veena Vishnu Bhagavan, Son of Madhavacharulu, Aged 37 years, Occ Employee, Resident of Peddapasupula Village, Jammalamadugu Mandal, Kadapa District, Andhra Pradesh

...Respondent/Petitioner

Petition Under Section 24 of the C.P.C. Praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to withdraw the HMOP.No.159/2023 on the file of the Senior Civil Judge Court, Proddatur, YSR Kadapa District and to transfer the same to the Hon'ble Family Court, Kurnool, Kurnool district which is convenient to attend the court proceedings.

LA NO: 1 OF 2025

petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to grant stay of all further proceedings in HMOP. No. 159/2023 on the file of Senior Civil Judge Court, Proddatur YSR Kadapa District during pendency of the above transfer petition.

Counsel for the Petitioner: Sri Path! Siva Prasad

Counsel for the Respondent: Ms Ayesha Azma S

The Court made the following order:

THE HON'BLE SRI JUSTICE V.GOPALA KRISHNA RAO

TRANSFER CIVIL MISCELLANEOUS PETITION No.142 of 2025

ORDER:

The petitioner/wife filed the present petition under Section 24 of the Code of Civil Procedure, 1908, seeking to withdraw H.M.O.P.No.159 of 2023, on the file of the Senior Civil Judge Court, Proddatur, YSR Kadapa District and transfer the same to the Family Court, Kurnool, Kurnool District.

2. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent and their marriage has been performed at Proddatur on 28.05.2011, as per Hindu rites and customs. In view of the matrimonial disputes between both the parties, the petitioner/wife along with her children aged about 12 years and 10 years are staying at her parents' house at Bangarupeta, Kurnool, Kurnool District and depending upon the mercy of her parents. The petitioner pleaded that she had lodged a complaint before the Allagadda Town Police Station under Sections 498-A, 323, 506 r/w 34 IPC and under Sections 3 & 4 of the Dowry Prohibition Act vide Cr.No.154 of 2023 against the respondent/husband and the same was numbered as C.C.No.617 of 2023, on the file of the Judicial Magistrate of First Class, Allagadda and the same is pending for adjudication. The petitioner further pleaded that she had filed a Maintenance Case vide M.C.No.07 of 2023, on the file of the Additional Judicial Magistrate of First Class, Nandyal and the same was dismissed as not pressed before the Court below, she had also filed a case in H.M.O.P.No.134 of 2022, on the file of the Principal Senior Civil Judge Court, Nandyal, seeking for dissolution of marriage, subsequently, the petitioner had withdrawn the said H.M.O.P., as not pressed. The learned counsel for the petitioner would contend that to cause inconvenience to the petitioner, the respondent/husband filed H.M.O.P.No.159 of 2023, on the file of the Senior Civil Judge Court, Proddatur, YSR Kadapa District, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, seeking for dissolution of marriage.

II. Learned counsel for the petitioner further contended that the petitioner being a woman having children aged about 12 years and 10 years respectively, depending upon the mercy of her parents, it is very difficult for her to travel at a distance of approximately more than 150 Kms from Bangarupeta, Kurnool District to Proddatur, YSR Kadapa District for attending the Court proceedings before the learned Senior Civil Judge Court, Proddatur, YSR Kadapa District, without any male support and that she was constrained to file the present petition against the respondent/husband seeking to withdraw H.M.O.P.No.159 of 2023, on the file of the Senior Civil Judge Court, Proddatur, YSR Kadapa District and transfer the same to the Family Court,

Kurnool, Kurnool District.

3. Respondent herein had filed a counter affidavit by denying the allegations leveled against him. Learned counsel for the respondent would contend that there are no grounds to consider the request of the petitioner seeking to transfer the aforesaid case from the Senior Civil Judge Court, Proddatur, YSR Kadapa District to the Family Court, Kurnool, Kurnool District and requested to dismiss the present transfer civil miscellaneous petition. She further contended that the respondent/husband has been retired from the Defence Services and is currently residing at Proddatur and if the case in H.M.O.P.No.159 of 2023 is transferred from Proddatur to Kurnool, the respondent/husband has to invariably travel on each and every date of adjournment. He further represented that, if this Court is inclined to transfer the case from Proddatur to Kurnool, the personal attendance of the respondent/husband may be dispensed with before the transferee Court.

4. Heard Sri Pathi Siva Prasad, learned counsel for the petitioner and Ms. Ayesha Azma.S, learned counsel for the respondent. Perused the material available on record.

5. The material on record prima facie goes to show that in view of the matrimonial disputes between both the parties, the petitioner/wife along with her children aged about 12 years and 10 years are staying at her parents house at Bangarupeta, Kurnool, Kurnool District and depending upon the mercy of her parents and she had filed a Criminal Case vide Cr.No.159 of 2024 against the respondent/husband and the same is numbered as C.C.No.617 of 2023, on the file of the Judicial Magistrate of First Class, Allagadda and the same is pending for adjudication. The respondent/husband has filed H.M.O.P.No.159 of 2023, on the file of the Senior Civil Judge Court, Proddatur, YSR Kadapa District, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, seeking for dissolution of marriage. Learned counsel for the petitioner would contend that recently the petitioner had filed a Maintenance Case before the learned IV Additional District Judge-Cum-Family Court, Kurnool and the same is not yet numbered. The respondent/husband has to invariably travel on each and every date of adjournment. He further represented that, if this Court is inclined to transfer the case from Proddatur to Kurnool, the personal attendance of the respondent/husband may be dispensed with before the transferee Court. As the respondent/husband has to travel on each and every date of adjournment, his personal attendance may be dispensed with before the transferee Court.

6. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER HEERA held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

7. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure Is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing

socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer. "

(2000) 10 see 304 " 2022 LiveLaw (SC) 627

8.

8^ Today when the matter i IS taken up for hearing, it brought to the notice of this Court by the learned counsel for the respondent/husband that the case in H.M.O.P.No.159 fo 2023 on the file of the Senior Civil Judge, Proddatur, YSR Kadapa District was instituted in the year 2023 and the matter is coming up for the respondent's evidence. As seen from the docket sheet proceedings filed by the respondent, it is noticed that the learned counsel for the petitioner herein before the Court below has not yet cross-examined the respondent herein i.e., the petitioner in H.M.O.P.No.159 of 2023. Further, learned counsel appearing for both sides has represented tha as the case in H.M.O.P.No.159 of 2023 has been instituted i in the year 2023, seeking for dissolution of marriage, in case, if the matter has been transferred to Kurnool, time limit may be fixed iic trailibffcfree Court i.e., to tne Judge, Family Court, Kurnool for disposal of the case in accordance with law.

9- On considering the submissions made by the learned counsel appearing for both sides and in view of the ratio laid down in the aforesaid case laws that in matrimonial proceedings, the convenience of the wife has to be considered than that of the i inconvenience of the husband. Therefore, this Court is of the considered view that there are grounds to consider the request Of the petitioner/wife to withdraw H. M.O.P.No.159 fo 2023, on the file of the Senior Civil Judge, Proddatur, YSR Kadapa District and transfer the same to the Family Court, Kurnool, Kurnool District. Further on considering the submissions made by the learned counsel for the respondent, as the respondent/husband has been retired from the Defence Services and is Staying at Proddatur, the personal attendance of the respondent/husband has been dispensed with before the transferee Court, except on the days when his presence is required before the learned Judge. Family Court Kurnool, Kurnool District.

10. In the result, the present petition is allowed and H.M.O.P.No.159 fo 2023, on the file of the Senior Civil Judge Proddatur, YSR Kadapa District i IS hereby withdrawn and transferred to the Judge, Family Court, Kurnool Kurnool District. The Senior Civil Judge, Proddatur, YSR Kadapa District, shall transmit the case record i in H.M.O.P.No.159 of 2023 to the Judge Family Court, Kurnool, Kurnool District, duly indexed expeditiously as possible as preferably within a period of one (01) week from the date of receipt of a copy of the order. Both the parties are directed to appear before the learned Judge, Family Court, Kurnool, Kurnool District on 16.10.2025, at 10.30 a.m., later the learned Judge, Family Court, Kurnool, Kurnool District, is directed not to insist for the personal appearance of the respondent/husband i.e., the petitioner in as long as his counsel is attending the Court proceedings and representing the case except on the day when re-conciliation proceedings are being taken up or on the day when his cross-examination is required to be recorded or on any other day when his personal appearance is required as directed by the learned Judge, Family Court, Kurnool, Kurnool District. Further on considering representation made by the learned counsel appearing for both sides, the learned Judge, Family Court, Kurnool, Kurnool

District is directed to dispose of the case in H.M.O.P.No.159 of 2023, .now under the orders of transfer within a period of three (03) months from the date of appearance of both the parties before the Family Court at Kurnool. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

Sd/- N NAGAM^WJA  
assistant ^^ISTRAR  
SECTION OFFICER

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To

YSR Kadapa District

ior Division), Proddatur

1 The Civil Judge(Senior \_

2 The Judge, Family Court , Kurnool, Kurnool District D/o. Kandukurii H .□4 CXI I

3. v»v. ""ToJ' \*»• No. 40-211, , Occ /Son of Ma dhavacharulu. Aged 37 years

4. Veena Vishnu Bhagavan Village, Jammalamadugu Peddapasupula Employee, Resident of Andhra Pradesh Mandal, Kadapa District Prasad, Advocate [OPUC]

5. One CC to Sri. Pathi Siva

6. One CC to Sri. Ayesha Azma S, Advocate [OPUC]

7. Two CD Copies Stu vna HIGH COURT DATED:08/09/2025 \ ORDER TRCMP NO. 142 OF 2025 i  
n SEP 2025 % ^ . Current Secion . ^ ALLOWING THE TR.CMP